

Ram Ratan v. Dakshinanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 10 April 2014 · Writ-C No. 20768 of 2014 · **Writ disposed; admitted arrears in three quarterly installments under cl. 6.14.**

HEADNOTE

Where the consumer did not dispute electricity dues of Rs. 1,90,434 demanded by notice dated 10.1.2012 but sought installment facility, the Court, referring to clause 6.14 of the U.P. Electricity Supply Code, 2005, disposed of the writ by directing deposit of the entire dues in three equal quarterly installments, current bills remaining payable independently, with automatic vacation of the order on default.

FACTUAL SUMMARY

Ram Ratan challenged a notice dated 10 January 2012 issued by Dakshinanchal Vidyut Vitran Nigam Ltd. requiring payment of electricity dues of Rs. 1,90,434, failing which the amount would be recovered as arrears of land revenue. He did not dispute the billed amount. He only sought facility to deposit it in installments. Counsel for the distribution company pointed to clause 6.14 of the U.P. Electricity Supply Code, 2005 as the provision under which installment facility may be extended.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment facility for admitted electricity arrears

HOLDING

On the parties' submission that clause 6.14 of the Supply Code permits installment facility, the Court disposed of the writ by directing the petitioner to deposit the entire admitted dues of Rs. 1,90,434 in three equal quarterly installments (1 June, 1 September and 1 December 2014). Current electricity bills remain payable independently of the installments. On default in paying the entire dues, the order stands automatically vacated and the competent authority is at liberty to recover. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 Where the consumer did not dispute electricity dues of Rs. 1,90,434 demanded by notice dated 10.1.2012 but sought installment facility, the Court, referring to clause 6.14 of the U.P.. ¶ 1